INDEX

TORRANCE PLANNING COMMISSION – JANUARY 15, 2025

SUBJECT			PAGE
	OPENING CEREMONIES		
1.	Call to Order / Roll Call		1
2.	Flag Salute		1
3.	Posting of the Agenda		1
4.	Withdrawn, Postponed, and / or Supplemental Items		1
5.	**ORAL COMMUNICATIONS**		1
6.	**CONSENT CALENDAR**		1
6A.	Approval of Minutes: November 20, 2024		1
7.	**ADMINISTRATIVE MATTERS**		2
7A.	PLANNING COMMISSION ANNUAL REPORT 2024		2
8.	**HEARINGS**		2
8A.	CUP24-00019: 3J CORP (3J LAND LLC)	*Res. No. 25-00-*	2-3
8B.	MOD24-00008, DVP24-00003: JAMIE PHAM	*Res. Nos. 25-002, 24-003*	3
8C.	PCR24-00001: CINDY LY (NRI PORTFOLIOS LLC C/O KEN PHAM)	*Res. No. 24-082*	3-4
8D.	PCR24-00002, WAV24-00008: MARK DIBACCO (JESSICA MALDONADO)	*Res. Nos. 25-004, 25-005*	4-5
8E.	PRE24-00007: JAVIER GONZALEZ-CAMARILLO (VICTOR AND CHRISTINA VEGA)	*Res. No. 24-070*	5-6
8F.	MHE24-00037: MIKE BOOSLER (SHUJI AND YORI YAMADA).	*Res. No. 25-006*	6-8
9.	**RESOLUTIONS**		8
10.	**COMMISSION ORAL COMMUNICATIONS**		9
11.	**ADJOURNMENT**		9

At 10:13 p.m., Commissioner Yeh moved to adjourn the Planning Commission meeting to Wednesday, February 5, 2025, at 6:30 p.m. in the LeRoy J. Jackson Council Chambers.

January 15, 2025

MINUTES OF A REGULAR MEETING OF THE TORRANCE PLANNING COMMISSION

1. CALL MEETING TO ORDER

The Torrance Planning Commission convened in a regular session at 6:34 p.m. on Wednesday, January 15, 2025, in the LeRoy J. Jackson Council Chambers.

ROLL CALL

Present: Commissioners Anunson, Borgialli, Obejas, Riggs, Turner, Yeh, and Chair Kartsonis.

Absent: None.

Also Present: Planning Manager Leo Oorts, Planning Associate Luis Velazquez, Planning Associate Adrian Perez, Planning Assistant Brice Kennedy, Planning Assistant Austin Lujan, Plans Examiner Uykheang Keo, Associate Engineer Anthony Maatubang, Senior Fire Prevention Specialist Chris Rhodes, Assistant City Attorney Tatia Strader, Deputy City Attorney Jennifer Guerrero, and Community Development Director Michelle Ramirez.

2. FLAG SALUTE

Chair Kartsonis led the Pledge of Allegiance.

3. REPORT OF THE COMMUNITY DEVELOPMENT STAFF ON THE POSTING OF THE AGENDA

Planning Manager Oorts stated that the agenda was posted on the Public Notice Board at 3031 Torrance Boulevard and on the City's Website on Thursday, January 9, 2025.

4. ANNOUNCEMENT OF WITHDRAWN, DEFERRED, AND/OR SUPPLEMENTAL ITEMS

Planning Manager Oorts reported (3) Supplemental Items for Items 8C, 8E, and 8F, a continuance of Item 8B to a date certain of February 5, 2025, and introduction of new staff.

5. ORAL COMMUNICATIONS

None.

6. CONSENT CALENDAR

6A. APPROVAL OF MINUTES: NOVEMBER 20, 2024

MOTION: Commissioner Riggs moved to approve the November 20, 2024 minutes. Commissioner Borgialli seconded the motion; a roll call vote reflected 7-0 approval.

7. ADMINISTRATIVE MATTERS

7A. PLANNING COMMISSION ANNUAL REPORT 2024

Recommendation of the Community Development Director that Planning Commission accept and file the Planning Commission Annual Report 2024 and forward to the City Council for accept and file

Planning Manager Oorts presented Item 7A, presenting a slideshow of the Planning Commission 2024 Annual Report. Planning Manager Oorts noted that a report will be presented annually moving forward.

No members of the public spoke.

MOTION: Commissioner Obejas moved to approve Item 7A, the Planning Commission Annual Report. Commissioner Turner seconded the motion; a roll call vote reflected 7-0 approval.

8. HEARINGS

8A. COMMUNITY DEVELOPMENT – CONDUCT A PUBLIC HEARING TO CONSIDER APPROVAL OF CUP24-00019: 3J CORP. (3J LAND LLC)

Recommendation of the Community Development Director that Planning Commission conduct a public hearing and consider approval of a Conditional Use Permit to allow the retail sale of beer and wine for offsite consumption under an Alcohol Beverage Control (ABC) Type 20 License, on property located in the C-2 Zone at 4205 Pacific Coast Highway. This project is Categorically Exempt from CEQA per Guidelines Section 15301 – Existing Facilities. (Res. No. 25-001)

Planning Associate Velazquez presented Item 8B.

Commissioner Turner disclosed that she has a business endeavor within 500' of the project and recused herself at 7:02 p.m.

Mr. Brett Engstrom spoke on behalf of the applicant.

Mr. Engstrom stated that there is a pending Conditional Use Permit application requesting the sale of beer and wine for offsite consumption in conjunction with the operation of the service station. The site has been a service station since its development in 1970.

Mr. Engstrom noted that all employees and managers will be required to attend the Alcohol Beverage Control's (ABC) training program.

Mr. Engstrom stated that the service station operates 24-hours a day and that a request was placed to coincide with State guidelines.

No members of the public spoke.

Commissioner Riggs disclosed that he visited the location and will base decisions on evidence presented.

In response to Chair Kartsonis Planning Associate Velazquez confirmed that staff did not receive any objections from neighboring businesses within 300'.

Commissioner Borgialli pointed out that the plans submitted reflect that of the brand Shell and not Arco. Mr. Engstrom stated that this should have been corrected and that plans should reflect the brand of Arco and not Shell.

Chair Kartsonis disclosed that he visited the location and that decisions will be based on evidence presented and personal observations.

MOTION: Commissioner Borgialli moved to close the public hearing. Commissioner Obejas seconded the motion; a roll call vote reflected 6-0 approval (Commissioner Turner recused).

MOTION: Commissioner Obejas moved to approve CUP24-00019 with correction as noted by Commissioner Borgialli. Commissioner Borgialli seconded the motion; a roll call vote reflected 6-0 approval. (Commissioner Turner recused).

RESOLUTION: Planning Assistant Lujan read the title of Resolution Number 25-001, a Resolution of the Planning Commission of the City of Torrance, California, approving a Conditional Use Permit as provided for in Division 9, Chapter 5, Article 3 of the Torrance Municipal Code to allow the retail sale of beer and wine for offsite consumption under an Alcohol Beverage Control (ABC) Type 20 License, on property located in the C-2 Zone at 4205 Pacific Coast Highway.

MOTION: Commissioner Obejas moved to adopt Resolution Number 25-001. Commissioner Borgialli seconded the motion; a roll call vote reflected 6-0 approval. (Commissioner Turner recused).

Commissioner Turner returned to the Commission at 7:14 p.m.

8B. COMMUNITY DEVELOPMENT – CONDUCT A PUBLIC HEARING TO CONSIDER APPROVAL OF MOD24-00008, DVP24-00003: JAMIE PHAM

Recommendation of the Community Development Director that Planning Commission conduct a public hearing and consider approval of a Modification of a previously approved Conditional Use Permit (CUP84-49) in conjunction with a Development Permit to allow the demolition of an existing drive through restaurant and the construction of a new drive through restaurant, on property located in the H-PR Zone at 19009 Hawthorne Boulevard. (Res. Nos. 25-002, 25-003)

Item 8B moved to a date certain of Wednesday, February 5, 2025.

MOTION: Commissioner Yeh moved to continue Item 8B to a date certain of February 5, 2025. Commissioner Borgialli seconded the motion; a roll call vote reflected 7-0 approval.

8C. COMMUNITY DEVELOPMENT – CONDUCT A PUBLIC HEARING TO CONSIDER APPROVAL OF PCR24-00001: CINDY LY (NRI PORTFOLIOS LLC C/O KEN PHAM)

Recommendation of the Community Development Director that Planning Commission conduct a public hearing and consider approval of a Planning Commission Review to allow additions to an existing one-story single-family residence, on property located within the Torrance Tract Overlay in the R-1 Zone at 1217 Beech Avenue. This project is Categorically Exempt from CEQA per Guidelines Section 15301 – Existing Facilities. (Res. No. 24-082)

Planning Assistant Kennedy presented Item 8C.

Commissioner Riggs disclosed that he owns property within 500’ of the project and recused himself at 7:18 p.m.

Ms. Cindy Ly, project designer, spoke on behalf of the homeowner.

Ms. Ly stated that the project consists of a new one-story addition to the existing single-family residence. The new addition is 715 square feet and consists of 3 bedrooms, new bath, and a 2-car garage. Additions will match the existing façade.

No members of the public spoke.

Chair Kartsonis disclosed that he visited the location and will base decisions on evidence presented and personal observations.

MOTION: Commissioner Borgialli moved to close the public hearing. Commissioner Obejas seconded the motion; a roll call vote reflected 6-0 approval (Commissioner Riggs recused).

MOTION: Commissioner Obejas moved to approve PCR24-00001. Commissioner Borgialli seconded the motion; a roll call vote reflected 6-0 approval (Commissioner Riggs recused).

RESOLUTION: Planning Assistant Lujan read the title of Resolution Number 24-082, a Resolution of the Planning Commission of the City of Torrance, California, approving a Planning Commission Review as provided for in Division 9, Chapter 1, Article 49 of the Torrance Municipal Code to allow a one-story addition to an existing one-story, single-family residence on property located within the Torrance Tract Overlay in the R-1 Zone at 1217 Beech Avenue.

MOTION: Commissioner Obejas moved to adopt Resolution Number 24-082. Commissioner Borgialli seconded the motion; a roll call vote reflected 6-0 approval (Commissioner Riggs recused).

Commissioner Riggs returned to the Commission at 7:24 p.m.

8D. COMMUNITY DEVELOPMENT – CONDUCT A PUBLIC HEARING TO CONSIDER APPROVAL OF PCR24-00002, WAV24-00008: MARK DIBACCO (JESSICA MALDONADO)

Recommendation of the Community Development Director that Planning Commission conduct a public hearing and consider approval of a Planning Commission Review to allow the demolition of an existing single-family residence and construction of a new two-story single-family residence, in conjunction with a Waiver of the side yard setback, on property located within the Torrance Tract Overlay in the R-2 Zone at 2223 Andreo Avenue. This project is Categorically Exempt from CEQA per Guidelines Sections 15303 – New Construction and 15305 – Minor Alterations. (Res. Nos. 25-004, 25-005)

Planning Associate Perez presented Item 8D.

Mr. Mark Dibacco, involved with the design and construction of the project, spoke on behalf of the applicant.

Mr. Dibacco stated that the owner is looking to develop the property to its full potential with proposed upgrades.

No members of the public spoke.

Commissioner Borgialli inquired if there is a guideline for modifications. Planning Associate Perez confirmed, stating that architectural design guidelines were adopted in 2017.

MOTION: Commissioner Borgialli moved to close the public hearing. Commissioner Obejas seconded the motion; a roll call vote reflected 7-0 approval.

MOTION: Commissioner Obejas moved to approve PCR24-00002 and WAV24-00008. Commissioner Borgialli seconded the motion; a roll call vote reflected 7-0 approval.

RESOLUTION: Planning Assistant Lujan read the title of Resolution Number 25-004, a Resolution of the Planning Commission of the City of Torrance, California, approving a Planning Commission Review as provided for in Division 9, Chapter 1, Article 44 and Article 49 of the Torrance Municipal Code to allow the demolition of an existing one-story, single-family residence, and to construct two single-family dwellings and a three-car garage on property located within the Torrance Tract Overlay, small-lot overlay in the R-2 Zone at 2223 Andreo Avenue.

RESOLUTION: Planning Assistant Lujan read the title of Resolution Number 25-005, a Resolution of the Planning Commission of the City of Torrance, California, approving a Waiver as provided for in Division 9, Chapter 4, Article 2 of the Torrance Municipal Code Review to allow a reduction of the northerly side yard setback requirement to allow the three-car garage and one open parking space for the proposed two single-family residences, on property located in the Torrance Tract Overlay, small-lot overlay in the R-2 Zone at 2223 Andreo Avenue.

MOTION: Commissioner Obejas moved to adopt Resolution Numbers 25-004 and 25-005. Commissioner Turner seconded the motion; a roll call vote reflected 7-0 approval.

8E. COMMUNITY DEVELOPMENT – CONDUCT A PUBLIC HEARING TO CONSIDER APPROVAL OF PRE24-00007: JAVIER GONZALEZ-CAMARILLO (VICTOR AND CHRISTINA VEGA)

Recommendation of the Community Development Director that Planning Commission conduct a public hearing and consider approval of a Precise Plan of Development to allow the construction of a new two-story single-family residence, on property located within the Hillside Overlay in the R-1 Zone at 5340 Doris Way. This project is Categorically Exempt from CEQA per Guidelines Section 15303 – New Construction. (Res. No. 24-070)

RECESS: 7:37 p.m.

RECONVENED: 7:45 p.m.

ROLL CALL: All Commissioners present.

Commissioner Obejas disclosed that he lives between the 500' to 1000' boundaries and after reviewing the list of questions providing by the City Attorney's Office regarding conflicts of interest, it was determined that there were no conflicts of interest and that a recusal would not be necessary.

Planning Assistant Lujan presented Item 8E.

Mr. Javier Gonzalez-Camarillo, architect, spoke on behalf of the owner.

Mr. Gonzalez-Camarillo stated that the project involves replacing a one-story home that the family has outgrown and noted that the project proposes a two-story home and an ADU.

Commissioner Anunson disclosed that he viewed the property and will base decisions on discussions and evidence presented.

RECESS: 7:53 p.m.

RECONVENED: 7:55 p.m.

ROLL CALL: All Commissioners present.

No members of the public spoke.

Planning Manager Oorts stated that per the Housing Accountability Act, because the project meets the objective development standards (development involves two new dwelling units), regardless of the second-story primary dwelling, the project cannot be denied. The project was brought before the Commission because it is located within the Hillside Overlay and local Ordinances still applies.

Mr. Gonzalez-Camarillo stated that the project is below the maximum height.

MOTION: Commissioner Obejas moved to close the public hearing. Commissioner Borgialli seconded the motion; a roll call vote reflected 7-0 approval.

MOTION: Commissioner Obejas moved to approve PRE24-00007. Commissioner Borgialli seconded the motion; a roll call vote reflected 7-0 approval.

RESOLUTION: Planning Assistant Lujan read the title of Resolution Number 24-070, a Resolution of the Planning Commission of the City of Torrance, California, approving a Precise Plan of Development as provided for in Division 9, Chapter 1, Article 41 of the Torrance Municipal Code to allow the construction of a new two-story single-family residence, on property located within the Hillside Overlay in the R-1 Zone at 5340 Doris Way.

MOTION: Commissioner Obejas moved to adopt Resolution Number 24-070. Commissioner Riggs seconded the motion; a roll call vote reflected 7-0 approval.

Chair Kartsonis stated the project makes a mockery of the City, local control, and that the State of California is making a mockery of its citizens with this overreach.

8F. COMMUNITY DEVELOPMENT – CONDUCT A PUBLIC HEARING TO CONSIDER APPROVAL OF MHE24-00037: MIKE BOOSLER (SHUJI AND YORI YAMADA)

Recommendation of the Community Development Director that Planning Commission conduct a public hearing to consider approval of a Minor Hillside Exemption to allow an existing as-built rear yard deck with guardrail on property located within the Hillside Overlay in the R-1 Zone at 5608 White Court. This project is Categorically Exempt from CEQA per Guidelines section 15303 – New Construction. (Res. No. 25-006)

Planning Assistant Lujan presented Item 8F.

Chair Kartsonis noted that the Item contained a Supplemental Item.

Mr. Eric Saiki with Saiki Law Group spoke on behalf of his clients, owners Shuji and Yori Yamada.

Mr. Saiki stated that the owners are not unsympathetic to privacy issues that neighbors may have and questioned if the project began with no privacy, could the project have less than no privacy. Mr. Saiki noted that according to the recommendations, there are no issues to light, air, views, but that that privacy was mentioned.

Mr. Saiki stated that the Yamada's tried to ameliorate any privacy concerns by taking away a staircase that allowed them to access a rear portion of their property and installed approximately (20) Ficus trees to create a privacy screen.

Mr. Saiki requested that approval be made without the Condition of the 10' setback, and that the appeal the Yamada's filed be upheld to allow the as-built deck and privacy screen to exist.

Mr. Saiki provided the Commission with property photos for their reference, stating that City staff only looked at the perspective from the down-slope neighbor and that the conclusions made by City staff is erroneous on several regards.

Mr. Saiki stated that the mitigation suggestion does not work as it does not solve anything.

Chair Kartsonis requested clarifications on the project. Planning Manager Oorts replied that in 2024, a complaint was submitted to City staff that an unpermitted deck was being constructed. Staff conducted field inspections, and code enforcement confirmed that the deck was constructed without a permit. A notice of violation was sent to the homeowners requesting proper permits be obtained. Notices were mailed out to adjacent properties informing the residents of the project, and correspondence was received expressing concerns of privacy impacts. Staff prepared a staff report with a recommendation to the Community Development Director that there be a Condition of Approval that would add a 10' setback to the project. The 10' setback is in line with Code requirements that there be a 10' setback with any improvements on a property and is in line with Torrance Municipal Code requirements. The Community Development Director approved the recommendation which the applicant appealed.

Plans Examiner Keo stated that due to the project being in the Hillside Overlay, any decks require a building permit and a geotechnical report by Code.

Kelly, a resident directly behind the property (down-slope), spoke on her concerns of privacy. Ms. Kelly requested that the deck be 10' from the property line.

Deborah spoke on behalf of Mr. Philip Chen, a resident directly behind the property. Concerns were expressed regarding privacy, the unpermitted deck, and the lack of following Code.

Mike Henton stated that for over 55 years, there have been no issue with neighbors until now. Mr. Henton stated that the Hillside Ordinance was written to prohibit massive decks that have direct and significant impacts on the Hillside Overlay area and that the unpermitted deck violates multiple sections of the Hillside Overlay. Mr. Henton expressed concerns on privacy.

Michelle, a next-door neighbor and friend, spoke in support of the Yamada family, stating that the deck is a great addition to the neighborhood and regarding privacy, there was no difference what could be seen before and after the deck's construction. Ms. Michell requested that the deck be kept as is.

Marjorie, a resident down-slope, expressed support for the project.

Tom Williamson, a resident across the street from the project, stated that he did not see an issue of the deck as there is no difference of views of standing on-grade or on the deck.

Carl Moore, a resident next to the project, stated that there is no difference in views if there is a deck or not. Mr. Moore stated that neighbors have no interest in peeking into someone's backyard

Saiki stated that there is no portion of the deck that exceeds 24".

Planning Manager Oorts stated that the deck does exceed 24" above the slope and that it was proven in photos provided in the staff report and was shown on photo boards by public speakers.

Mr. Saiki stated that a permit has been applied for after the construction of the deck and that it was an estimation that the deck exceeds 24". Chair Kartsonis referenced the staff report and stated that pictures give an indication that the deck exceeds 24".

Yori Yamada stated that the licensed contractor stated that a permit was not needed, that a permit was applied for once it was found out one was needed and requested that an agreement be reached.

Planning Manager Oorts provided clarification, stating that staff's recommendation to the Planning Commission is to deny the appeal and to approve the Minor Hillside Exemption. A "yes" vote will be in favor of staff's recommendation with a Condition of Approval that the applicant provide a 10' setback from the rear property line. A "no" vote will uphold the applicant's appeal.

RECESS: 9:35 p.m.

RECONVENED: 9:42 p.m.

ROLL CALL: All Commissioners present.

Mr. Saiki stated that he agreed that permits are permanence and suggested that measurements of the deck be taken by the City or City contractor to address objective questions.

MOTION: Commissioner Yeh moved to close the public hearing. Commissioner Turner seconded the motion; a roll call vote reflected 7-0 approval.

Commissioner Obejas stated that he is a believer in the permit process and has not been swayed to remove the mitigation to address privacy concerns.

Commissioner Riggs stated that it is prudent to take care of the project in the right way for safety purposes.

Commissioner Turner stated that the geotechnical report is crucial to understanding if the project is built to proper code.

Commissioner Borgialli stated that aside from privacy, the concern is safety for residents below from water erosion. Assistant City Attorney stated that the geotechnical study will address this if the Commission upholds staff's recommendation. Planning Manager Oorts confirmed.

MOTION: Commissioner Obejas moved to deny the appeal and approve MHE24-00037 as written. Commissioner Turner seconded the motion; a roll call vote reflected 7-0 approval.

RESOLUTION: Planning Assistant Lujan read the title of Resolution Number 25-006, a Resolution of the Planning Commission of the City of Torrance, California, denying an appeal and upholding a Community Development Director approval of a Minor Hillside Exemption as provided for in Division 9, Chapter 1, Article 41 of the Torrance Municipal Code to allow an existing as-built rear yard deck with guardrail on property located within the Hillside Overlay in the R-1 Zone at 5608 White Court.

MOTION: Commissioner Obejas moved to adopt Resolution Number 25-006. Commissioner Borgialli seconded the motion; a roll call vote reflected 7-0 approval.

9. RESOLUTIONS

None.

10. COMMISSION ORAL COMMUNICATIONS

Commissioner Obejas urged the City to investigate educational opportunities for hardening properties against fires.

Assistant City Attorney Strader announced that she and Deputy City Attorney Jennifer Guerrero will have an alternating schedule to serve the Planning Commission moving forward.

Planning Associate Perez announced the upcoming Community Development Department outreach regarding the Land Use Element and Safety Element for the Torrance General Plan.

Planning Manage Oorts announced the City Council approval of the 260-unit townhome development on the northwest corner of Carson Street and Madrona Avenue. He also announced that in response to recent changes to State law, the public notice period will increase to 20 calendar days for all Hearing Items as opposed to 10 calendar days required by Code. He also announced that City Council approved the creation of an ad hoc committee to research and explore the potential annexation of El Camino Village.

Planning Manager Oorts introduced a new Planning Assistant.

Community Development Director Ramirez announced the Environmental Fair June 2025; all Commissions will be offered to host a booth.

11. ADJOURNMENT

MOTION: At 10:13 p.m., Commissioner Yeh moved to adjourn the meeting to Wednesday, February 5, 2025, at 6:30 p.m. in the Council Chambers. Commissioner Obejas seconded the motion; a roll call vote reflected 7-0 approval.

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Approved as amended
March 19, 2025
s/Rebecca Poirier, City Clerk